

23. Match the following

List I (Sanctuaries)	List II (States)
A. Sharavati Valley	1. Gujarat
B. Satkosia Gorge	2. Goa
C. Pirotan Island	3. Odisha
D. Bhagwan Mahavir	4. Karnataka

Codes

A B C D	A B C D
(a) 2 1 3 4	(b) 4 1 3 2
(c) 4 3 1 2	(d) 2 3 1 4

24. Which of the following statement(s) is/are correct with regard to the Living Planet Report-2014 (Species and Spaces, People and Places) released by World Wildlife Fund (WWF)?

1. The Living Planet Index (LPI), which measures more than 10000 representative populations of mammals, birds, reptiles, amphibians and fish, has declined by 52% since 1970.

2. The most dramatic regional LPI decrease occurred in Africa.

Select the correct answer using the codes given below.

- (a) Only 1
(b) Only 2
(c) Both 1 and 2
(d) Neither 1 nor 2

2015 (II)**25. Match the following**

List I (Lakes)	List II (Types)
A. Ashtamudi Kayal	1. Residual (Sweet water)
B. Himayat Sagar	2. Lagoon
C. Dal Lake	3. Glacial
D. Tsomgo Lake	4. Artificial (Sweet water)

Codes

A B C D	A B C D
(a) 2 4 1 3	(b) 2 1 4 3
(c) 3 1 4 2	(d) 3 4 1 2

26. Match the following

List I (Plants)	List II (Natural Vegetation Types)
A. Ebony	1. Moist deciduous
B. Shisham	2. Himalayan moist
C. Walnut	3. Alpine
D. Birch	4. Tropical evergreen

Codes

A B C D	A B C D
(a) 4 1 2 3	(b) 4 2 1 3
(c) 3 2 1 4	(d) 3 1 2 4

27. 'Rio + 20' is the short name for

- (a) Millennium Development Goals
(b) United Nations Conference on Sustainable Development
(c) Earth Summit
(d) Post-2015 Development Agenda

2016 (I)**28. The Mahatma Gandhi National Marine Park is located in**

- (a) Pirotan Island (b) Rameswaram
(c) Ganga Sagar Island (d) Port Blair

ANSWERS**Practice Exercise**

1	a	2	b	3	b	4	a	5	c	6	c	7	b	8	c	9	b	10	c
11	b	12	b	13	c	14	d	15	b	16	c	17	b	18	b	19	a	20	d
21	d	22	b	23	a	24	d	25	a	26	d	27	c	28	a	29	b	30	b
31	d	32	b	33	b	34	d	35	b	36	c	37	b	38	a	39	c	40	c
41	a	42	d	43	a	44	d	45	b	46	b	47	b	48	b	49	a	50	b
51	d	52	a	53	b	54	c	55	a	56	a	57	d	58	b	59	c	60	d
61	c	62	a	63	b	64	d	65	c	66	c	67	c	68	c	69	a	70	c
71	b																		

Questions from CDS Exam (2012-16)

1	d	2	c	3	d	4	c	5	d	6	c	7	b	8	d	9	c	10	d
11	d	12	d	13	c	14	a	15	c	16	c	17	a	18	c	19	a	20	a
21	d	22	a	23	c	24	a	25	a	26	a	27	b	28	d				

03

INDIAN POLITY

Analysing the previous year question papers of CDS examination, the Polity section has a great relevance. Around 14-16 questions are asked from this section. The topics which are asked include Fundamental Rights, Executive, Legislative and Judiciary system of India, Panchayati Raj system, Important Articles, Important Constitutional Amendment Acts, Schedules of the Constitution etc.



The British Government has introduced a series of constitutional reforms to regulate and control the affairs of India. These constitutional reforms were guided towards ensuring responsible governance in India. The emergence of India as an independent and sovereign democratic republic has its roots in the history of British rule in India.

The evolution of Indian Polity and Constitution can be better understood, only if we start with brief reviews of constitutional development during British rule.

HISTORICAL BACKGROUND

- The very genesis of Indian Constitution can be traced from 1773 as it was first constitutional intervention by British Government to control and regulate the affairs of East India Company in India. British rule in India till 1858 was basically that of the East India Company because after that British Government took the governance of India in its hands directly.
- With rising activities and responsibilities of company, need was felt to regulate and control the affairs which resulted in various enactments by British Parliament.
- The period of British constitutional experiment in India can be divided into two phases for better understanding that is constitutional experiments during the rule of East India Company (1773-1857) and the constitutional experiments under the British crown (1857-1947).

Constitutional Development Under East India Company

Regulating Act (1773)

- The Governor of Bengal was elevated to the position of the Governor-General of Bengal.
- The Parliament got the right to intervene in the affairs of the company. The dual government was abolished. A Supreme Court was set-up at Calcutta headed by Elijah Impey.

Pitts India Act (1784)

- The act established six commissioners for the affairs of India. This body known as the Board of Control was to exercise an effective control over the Board of Directors, who possessed the charge of the administration of the company.
- The control of the Governor-General in council over the presidencies of Madras and Bombay was clearly defined and rendered more effective.

The Charter Act (1793)

- The powers of Board of Control were concentrated in the hands of the President, who virtually became the Cabinet Minister for India.
- The salaries of the members of the Board of Control and that of the President were to be drawn from the Indian exchequer.

The Charter Act (1813)

Asserted the crown's sovereignty over British India. Company's monopoly overtrade abolished except trade with China, allotted money to promote education in Indian masses. Christian missionaries were permitted.

The Charter Act (1833)

- The act abolished the trading activities of the company and hence forth, it became a purely administrative body.
- The Governor-General of Bengal was designated as the Governor-General of India. William Bentinck thus became the first Governor-General of India.
- Abolition of the power of different presidencies to make law for themselves and giving power to the Governor-General in council to make laws.
- In order to enable the council to discharge the important functions efficiently, a new member with expert knowledge of law was added to it.

The Charter Act (1853)

- The number of directors were reduced and the power of patronage was taken away from them by instituting an open competitive examination for the recruitment of civil servants.
- The approval of the crown was made necessary for all appointments of councillors, both central and provincial.

Constitutional Development Under British Crown

Government of India Act (1858)

- As a result of the Sepoy Mutiny, the power to govern was transferred from the East India Company to the British crown.
- A post of Secretary of State (a member of British Council) for India was created. He was assisted by a 15 Member Council (called Indian Council). He was to exercise the powers of the crown.
- The Board of Control and the court of directors were abolished. The Governor-General was given the title Viceroy. He represented Secretary of State, who was assisted by an Executive Council which consisted of high officials of the government.
- The viceroy's status was reduced to a subordinate authority in relation to the British Government in matters of policy as well as execution of policy. He was aided by an Executive Council of 5 members, who were heads of different departments.

Indian Council Act (1861)

- Provincial Legislative Council members introduced. Council of Governor was known as Imperial Legislative Council. Non-official (Indians) were added.
- Portfolio system was introduced. High Courts (1865) established (High Court Act, 1861). Indian Civil Service Act, 1861 was passed.

Indian Council Act (1892)

- It provided for nomination of some non-official members to Central Legislative Council and Provincial Legislative Council.
- This act made the provision for election for filling the some non-officials seats in central and provincial legislative councils for the first time in the constitutional development of India.

Morley-Minto Reforms (1909)

- The Morley-Minto Reforms or the Indian Council Act, 1909. Separate electorate for Muslims was introduced.
- Direct election (non-official members who are directly elected). They could discuss the budget and also cross questioning could be done.
- A bicameral legislature at the centre was provided. Dyarchy in the provinces which unlike its dictionary meaning of two bodies : Transferred and Reserved.
- Separate electorates were further extended to Sikh in the Punjab and non-Brahmins in Madras. Right to Vote for women was provided.

Government of India Act (1919)

- This is also known as **Montague-Chelmsford Reforms**, after the secretary of state Edwin Montague and the Viceroy Chelmsford.
- The Executive Council was enlarged and Central Legislature was thoroughly remodelled and made bicameral, two chambers being the Council of State and the Legislative Council.
- The legislature had virtually no control over the Viceroy and his Executive Council which the Central Government had unrestricted control over the Provincial Government. The Act introduced *dyarchy or dual government* in the provinces.

The Government of India Act (1935)

- The act provided for the establishment of an all India Federation. *It divided the powers into three lists*
 - Federal List,
 - Provincial List and
 - Concurrent List
- Residuary powers were with the Governor-General.
- Act of 1935 introduced the provincial autonomy and abolition of Dyarchy. The provincial legislatures were made bicameral for the first time in 6 provinces (i.e. Bengal, Madras, Bombay, Uttar Pradesh, Bihar and Assam).

The Indian Independence Act (1947)

- The act provided for setting up of two independent dominions, to be known as India and Pakistan from 15th August, 1947.
- The territories of the dominion of India would include the whole British India exclusive of the territories consisting Pakistan. The legislature of each dominion would have full power to make laws for that dominion.
- With effect from 15th August, 1947, the British Government would cease to have any responsibility for the Government of British India and all treaties and agreements between his majesty's government and the rulers of Indian states.
- The two dominions as the provinces would be governed as nearly as may be in accordance with the Act of 1935.
- Provision was made for the division of the armed forces and the civil services between the new dominions. Each dominion would exercise authority over its armed and civil services.

MAKING OF THE CONSTITUTION

- The demand that India's political destiny should be determined by the Indians themselves had been put forward by Mahatma Gandhi as early as in 1922. The idea of a Constituent Assembly for India was put forward for the first time by MN Roy in 1934.
- The demand for the Constituent Assembly was first accepted by the British in August offer (1940). The Constituent Assembly was set-up as per the Cabinet Mission Plan of 1946. An interim government was formed on September 1946 from the newly elected Constituent Assembly. The first meeting was held on 9th December, 1946 with Sachidanand Sinha, as the interim or provisional President. On 11th December, 1946, Dr Rajendra Prasad was elected as the President of the Constituent Assembly.

Members of Interim Government

Viceroy and Governor-General of India	Viscount Wavell
Vice-President	Jawaharlal Nehru
Home Affairs, Information and Broadcasting	Vallabhbhai Patel
Agriculture and Food	Rajendra Prasad
Commerce	Ibrahim Ismail Chundrigar (Muslim League)
Education and Arts	C Rajagopalachari
Defence	Baldev Singh
Finance	Liaquat Ali Khan (Muslim League)
Health	Ghazanfar Ali Khan (Muslim League)
Industries and Supplies	John Mathai
Labour	Jagjivan Ram
Law	Jogendra Nath Mandal (Muslim League)
Posts and Air	Abdur Rab Nishtar (Muslim League)
Railways and Communication	Asaf Ali
Work, Mines and Power	CH Bhabhan

Drafting Committee

- On 29th August, 1947, the Constituent Assembly set-up a Drafting Committee under the Chairmanship of Dr BR Ambedkar to prepare a Draft Constitution for India.
- The **Constitution of India** was adopted on 26th November, 1949 and the honourable members appended their signatures to it on that day. In all, 284 members actually signed the Constitution. 26th November, 1949 is also mentioned in the Preamble as the date on which the people of India adopted, enacted and gave to themselves the Constitution.

Constitution Committees and their Chairmen

Major Committees	Chairmen
Drafting Committee	Dr BR Ambedkar
	Members
	1. N Gopalaswami Ayyangar
	2. AK Ayyar
	3. KM Munshi
	4. Mohammed Sadullah
	5. BL Mittar
	6. DP Khaitan
Union Power Committee	Jawaharlal Nehru
Union Constitution Committee	Jawaharlal Nehru
Provincial Constitution Committee	Sardar Patel
Advisory Committee on Fundamental Rights and Minorities, Tribal Affairs	Sardar Patel
Rules of Procedure Committee	Dr Rajendra Prasad
States Committee	Jawaharlal Nehru
Steering Committee	Dr Rajendra Prasad
Special Committee to Examine the Draft Constitution	Sir Alladi Krishna Swamy Iyer

Borrowed Features of the Constitution of India

- **From UK (England)** Parliamentary System, Lower House more powerful, Prime Minister, Cabinet System of Ministers, Single Citizenship, Bicameral Parliament, Provision of Speaker in Lok Sabha, Council of Ministers responsible to Lower House, Nominal Head—President.
- **From USA** Written Constitution, Post of Vice-President, Fundamental Rights, Supreme Court, Head of the State known as President, Provision of States and Judicial Review.
- **From France** Republic and ideals of liberty, equality and fraternity.
- **From Australia** Concurrent List, Centre-State Relationship, Language of the Preamble.
- **From USSR** Fundamental Duties and Five Year Plan.
- **From Germany** Emergency provisions.
- **From Japan** Procedure established by law.
- **From Canada** Federal system and Residuary powers.
- **From South Africa** Procedure of Constitutional Amendment.
- **From Ireland** Concept of Directive Principles of State Policy (originally, it was borrowed from Spain).

Constitution at a Glance

Part	Subject Matter	Articles Covered
I	The Union and its Territory	1 to 4
II	Citizenship	5 to 11
III	Fundamental Rights	12 to 35
IV	Directive Principles of State Policy	36 to 51
IV A	Fundamental Duties	51 A
V	The Union	52 to 151
	Chapter I The Executive	52 to 78
	Chapter II Parliament	79 to 122
	Chapter III Legislative Powers of the President	123
	Chapter IV The Union Judiciary	124 to 147
	Chapter V Comptroller and Auditor General of India	148 to 151
VI	The States	152 to 237
	Chapter I General	152
	Chapter II The Executive	153 to 167
	Chapter III The State Legislature	168 to 212
	Chapter IV Legislative Powers of the Governors	213
	Chapter V The High Courts	214 to 232
	Chapter VI Subordinate Courts	233 to 237
VIII	The Union Territories	239 to 242
IX	The Panchayats	243 to 243-0
IX A	The Municipalities	243 P to 243 ZG
IX B	Cooperatives	243 ZG to 243ZT
X	The Scheduled and the Tribal Areas	244 to 244 A
XI	Relations between the Union and the States	245 to 263
	Chapter I Legislative Relations	245 to 255
	Chapter II Administrative Relations	256 to 263

XII	Finance, Property, Contracts and Suits	264 to 300 A
	Chapter I Finance	264 to 291
	Chapter II Borrowing	292 to 293
	Chapter III Property, Contracts, Rights Liabilities, Obligations and Suits	294 to 300
	Chapter IV Right to Property	300 A
XIII	Trade, Commerce and Intercourse within the Territory of India	301 to 307
XIV	Services under the Union and the States	308 to 323
	Chapter I Services	308 to 314
	Chapter II Public Service Commission	315 to 323
XIVA	Tribunals	323 A to 323 B
XV	Elections	324 to 329 A
XVI	Special Provisions Relating to Certain Classes	330 to 342
XVII	Official Language	343 to 351
	Chapter I Language of the Union	343 and 344
	Chapter II Regional Languages	345 to 347
	Chapter III Language of the Supreme Court, the High Courts and so on	348 and 349
	Chapter IV Special Directives	350 to 351
XVIII	Emergency Provisions	352 to 360
XIX	Miscellaneous	361 to 367
XX	Amendments of the Constitution	368
XXI	Temporary, Transitional and Special Provisions	369 to 392
XXII	Short Title, Commencement, Authoritative Text in Hindi and Repeals	393 to 395

➤ *Part-VII (Article 238) deals with states was repealed in 1956 by the 7th Constitutional Amendment Act.*

Schedules in Constitution

First Schedule	List of States and Union Territories.
Second Schedule	Salary of President, Governors, Chief Judges, Judges of High Court and Supreme Court, Comptroller and Auditor General.
Third Schedule	Forms of Oaths and Affirmations.
Fourth Schedule	Allocate seats for each State of India in Rajya Sabha.
Fifth Schedule	Administration and control of Scheduled Areas and Tribes.
Sixth Schedule	Provisions for administration of Tribal Area in Assam, Meghalaya, Tripura and Mizoram.
Seventh Schedule	Gives allocation of powers and functions between Union and States. <i>It contains three lists</i> 1. Union List (for Central Govt.): 97 subjects 2. States List (Power of State Govt.): 66 subjects 3. Concurrent List (Both Union and States): 47 subjects
Eighth Schedule	List of 22 languages of India recognised by Constitution.
Ninth Schedule	Added by 1st Amendment in 1951. Contains acts and orders related to land tenure, land tax, railways and industries.
Tenth Schedule	Added by 52nd Amendment in 1985. Contains provisions of disqualification on grounds of defection.
Eleventh Schedule	By 73rd Amendment in 1992. Contains provisions of Panchayati Raj.
Twelfth Schedule	By 74th Amendment in 1992. Contains provisions of Municipal Corporation.